

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Spencer Migotsky	Team: Squad #01	CCRB Case #: 201504406	☐ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Tuesday, 05/19/2015 5:10 PM	Location of Incident: In front of Key Food located at 3485 Neptune Avenue	18 Mo. SOL 11/19/2016	Precinct: 60		
Date/Time CV Reported Sun, 05/31/2015 5:17 PM	CV Reported At: CCRB	How CV Reported: On-line website	Date/Time Received at CCRB Sun, 05/31/2015 5:17 PM		
Complainant/Victim	Type	Home Address			
Witness(es)	Home Address				
Subject Officer(s)	Shield	TaxID	Command		
1. POM Cesar Reyes	13929	952159	PSA 1		
2. POM Lukasz Banach	17932	950043	PSA 1		
Officer(s)	Allegation	Investigator Recommendation			
A . POM Cesar Reyes	Discourtesy: PO Cesar Reyes spoke rudely to § 87(2)(b)	A . Unsubstantiated			
B . POM Cesar Reyes	Abuse: PO Cesar Reyes stopped § 87(2)(b)	B . Exonerated			
C . POM Lukasz Banach	Discourtesy: PO Lukasz Banach acted rudely toward § 87(2)(b)	C . Unsubstantiated			

Case Summary

On May 19, 2015 at approximately 4:30 pm, § 87(2)(b) was waiting in front of Key Foods near 3485 Neptune Avenue in Brooklyn to pick up his nephew. He had come from his house and sat outside the store for about 10 minutes. A van turned on the street towards him and two officers, PO Cesar Reyes and PO Lukasz Banach, exited the vehicle and approached § 87(2)(b). PO Reyes asked § 87(2)(b) for his name and said “don’t fucking play with me” (**Allegations A**). § 87(2)(b) gave his name and asked what was going on. PO Reyes said that he saw § 87(2)(b) riding a bicycle and that they chased him (**Allegation B**). § 87(2)(b) said that he came outside 10 minutes earlier and was sitting in front of Key Foods the whole time. He also told PO Reyes that he did not own a bicycle and had not ridden one in 5 years. As he spoke with the officers, § 87(2)(b) kept his hands in the air. PO Banach took out his phone and took pictures of § 87(2)(b) to show other people at the precinct (**Allegation C**). § 87(2)(b) did not condone the photos. His name was run and found to have an open warrant. PO Reyes handcuffed § 87(2)(b) and told him “get the fuck in the back” while placing him in the van (also **Allegation A**). He was taken to the stationhouse for processing.

Mediation, Civil and Criminal Histories

On June 16, 2015, mediation was offered to and rejected by § 87(2)(b) [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
A notice of claim was returned with negative results.

Civilian and Officer CCRB Histories

- This is the first complaint filed by § 87(2)(b) § 87(2)(b)
- PO Reyes has been a member of the NYPD for 3 years. He has no substantiated allegations § 87(2)(g)
- PO Banach has been a member of the NYPD for 4 years. He has no substantiated allegations § 87(2)(g)

Potential Issues

Attempts were made to obtain video footage from Key Foods but it was unavailable. A witness, § 87(2)(b) was also contacted, who gave a brief statement, but did not give a verified statement at the CCRB.

Finding and Recommendations

Explanation of Subject Officer Identification

PO Cesar Reyes identified by name by § 87(2)(b) In his interview, PO Reyes stated that he was the one who stopped and cursed at § 87(2)(b) § 87(2)(g)

PO Banach confirmed his role in the incident in his interview. § 87(2)(g)

Allegations not pleaded

§ 87(2)(g)

Allegation A – PO Cesar Reyes spoke rudely to § 87(2)(b)

§ 87(2)(b) stated that PO Reyes said “don’t fucking play with me” when asking for his name and “get the fuck in the back” when he was arrested and placed in the officers’ van (Board Review 02). PO Reyes and PO Banach denied that they said either of the alleged statements and maintained that their interaction with § 87(2)(b) did not become contentious. On the contrary, both officers stated that § 87(2)(b) was compliant (Board Review 03 and 04).

§ 87(2)(g)

§ 87(2)(b), it is recommended that **Allegation A** be closed as **unsubstantiated**.

Allegation B – PO Cesar Reyes stopped § 87(2)(b)

§ 87(2)(b) stated that he was sitting outside of Key Foods for ten minutes (and at no point operated a bicycle) when PO Reyes and PO Banach approached him (Board Review 02). PO Reyes stated that he witnessed § 87(2)(b) riding a bicycle on the sidewalk and that he saw § 87(2)(b) hand the bicycle to an adolescent before the officers approached him (Board Review 03). PO Banach did not see § 87(2)(b) riding a bicycle, but PO Reyes informed him that he observed him riding on the sidewalk and give the bicycle to someone else (Board Review 04). A witness, § 87(2)(b) said that he saw the officers interact with § 87(2)(b) and that he did not see § 87(2)(b) with a bicycle. § 87(2)(b) gave a very brief phone statement however, and did not mention when he started watching the interaction between § 87(2)(b) and the police.

§ 87(2)(a) 160.50

§ 87(2)(g)

§ 87(2)(b) it is recommended that **Allegation B** be closed as **exonerated**.

Allegation C – PO Lukasz Banach acted rudely toward § 87(2)(b)

§ 87(2)(b) stated that when PO Reyes and PO Banach approached him, he kept his hands raised in the air because he was afraid of what he had heard about the police in the news. He stated that PO Banach took out his phone and took pictures of him to show other people at the precinct. § 87(2)(b) did not condone the photos (Board Review 02). PO Reyes and PO Banach both denied that anyone took any photos of § 87(2)(b) (Board Review 03 and 04).

_____, it is recommended that **Allegation C** be closed as **unsubstantiated**.

Pod: _____

Investigator: _____	_____	_____
Signature	Print	Date

Supervisor: _____	_____	_____
Title/Signature	Print	Date

Reviewer: _____	_____	_____
Title/Signature	Print	Date

Reviewer: _____	_____	_____
Title/Signature	Print	Date